THE MAHARASHTRA SHOPS AND ESTABLISHMENTS (REGULATION OF EMPLOYMENT AND CONDITIONS OF SERVICE) RULES, 2018

Table of Contents

1.	Short title	4
2.	Definition	4
3.	Application for registration of establishment	4
4.	Payment of Electronic Transaction or Service Charges	4
5.	Manner of registration of establishment	4
6.	Renewal of registration certificate	5
7.	Issue of renewed certificate	5
8.	Form for intimation of commencement of business by such employer engaging less than ten workers	5
9.	Issue of receipt of intimation	5
10.	Notice to make changes in registration certificate	5
11.	Closing of business	6
12.	Power of Government for regulating opening and closing timings of establishments	6
13.	Conditions for employment of women in general as well as in night shifts	6
14.	Notice of hours of work, rest interval, weekly holiday	7
15.	Prohibition of overlapping of shifts	7
16.	Notice of shift schedule, weekly holiday of workers engaged in shift	8
17.	Part-time employment	8
18.	Other particulars on identity card	8
19.	Leave Book	8
20.	Notice by employer or manager of accumulated leave	9
21.	Health, Safety and Welfare Committee	9
22.	Cleanliness, lighting and ventilation	9
23.	Precautions against fire	10
24.	First-aid appliances	10
25.	Latrines and urinals	10
26.	Maintenance of registers and records	10
27.	Annual Return	11
28.	Supervision of State Government over Local Authority	11
29.	Qualification of Facilitator	11
30.	Duties and powers of Facilitator	12
31.	Application for Compounding of Offence	12

32.	Procedure for Compounding of Offence	12
33.	Intimation of persons discharging managerial function	13
34.	Intimation of persons doing confidential work	13
35.	Name Board to be in Marathi	13
36.	Cancellation of registration certificate	13

THE MAHARASHTRA SHOPS AND ESTABLISHMENTS (REGULATION OF EMPLOYMENT AND CONDITIONS OF SERVICE) RULES, 2018

No. MSA 11/ 2017/ CR 298/ Labour 10.-- In exercise of the powers conferred by sub-section (1) of section 37 of the Maharashtra Shops and Establishments (Regulation of Employment and Conditions of Service) Act, 2017 (Mah. LXI of 2017) and of all other powers enabling it in that behalf, the Government of Maharashtra hereby makes the following rules; the same having been previously published as required by sub-section (2) of section 37 of the said Act, namely:

1. Short title

These rules may be called the Maharashtra Shops and Establishments (Regulation of Employment and Conditions of Service) Rules, 2018.

2. Definition

(1) In these rules unless the context otherwise requires,

(a) "Act" means the Maharashtra Shops and Establishments (Regulation of Employment and Conditions of Service) Act, 2017(Mah.LXI of 2017);

(b) "Form" means the forms appended to these rules;

(c) "Government" means the Government of Maharashtra;

(d) "Schedule" means a Schedule appended to these rules;

(e) "section" means a section of the Act;

(f) "Managerial Functions" means all such functions which are inherently supervisory in nature and are bestowed with powers and authority to take all policy and administrative decision in an organisation, e.g. power to sanction leave, award increment, take disciplinary action, to terminate, suspend or dismiss a worker or indulge in policy making decision regarding any aspect of the business or service, conditions of workers and such other similar powers.

(2) Words and expressions used in these rules but not defined hereinabove shall have the same meanings as are respectively assigned to them in the Act.

3. Application for registration of establishment

The employer of every establishment engaging ten or more workers shall submit online application in Form 'A' for registration of the establishment as per section 6 of the Act alongwith the required documents as specified in Part A of the Schedule.

4. Payment of Electronic Transaction or Service Charges

No fee is prescribed under this Act and rules. However, the employer shall pay the electronic transaction or service charges as fixed by the Government from time to time for availing e-services under the Act and these rules.

5. Manner of registration of establishment

(1) Every online application in Form 'A' for registration of establishment may be assigned to any of the Facilitator of that local office, who shall scrutinise the application,

uploaded documents along with the details mentioned in the application. If the application is complete in all respects and supported with all the required documents, he shall digitally sign the certificate of registration, which shall be in Form 'B' within working seven days from the date the application appears on the dashboard of the Facilitator. The digitally signed certificate may be downloaded by the applicant. The entry of the establishment which is registered shall be made in the Register of Establishments to be maintained in Form 'C'.

(2) If an application is incomplete or not supported with required documents as mentioned in these rules, then the Facilitator, may reject such application by mentioning the reasons thereof within working seven days from the date on which the application appears on the dashboard of the Facilitator.

6. Renewal of registration certificate

Every application for renewal of registration shall be submitted online in Form 'D' alongwith the required documents as specified in Part B of the Schedule.

7. Issue of renewed certificate

(1) The Facilitator shall scrutinise the application for renewal of registration and the documents uploaded. If an application is complete in all respects and supported with all the required documents, he shall digitally sign the renewed certificate of registration which shall be in Form 'E' within working seven days from the date on which the application appears on the dashboard of the Facilitator. The digitally signed certificate may be downloaded by the applicant.

(2) If an application is incomplete or not supported with required documents as mentioned in these rules, the Facilitator by mentioning the reasons thereof, may reject such application within working seven days from the date on which such application appears on dashboard of the Facilitator.

8. Form for intimation of commencement of business by such employer engaging less than ten workers

The employer of every establishment engaging less than ten workers shall submit an online intimation in Form 'F' of commencement of the business alongwith the required documents as specified in Part 'C' of the Schedule.

9. Issue of receipt of intimation

After receiving an intimation in Form 'F' alongwith all the documents, a receipt of such intimation in Form 'G' shall be issued to the applicant online and the details thereof shall be recorded in a register maintained for that purpose in Form 'H'.

10. Notice to make changes in registration certificate

(1) Any changes in the certificate of registration shall be notified online in Form 'I' to the Facilitator as per section 9 of the Act within thirty days from the date the change took place alongwith the required documents to be uploaded as specified in the application and Part 'D' of the Schedule.

(2) On receipt of such notice the Facilitator shall scrutinise the same and shall digitally sign and issue a fresh modified certificate within working seven days from the date of receipt of such notice. However, if the notice is not complete or is not supported by the required documents he shall reject the notice by mentioning the reasons thereof.

11. Closing of business

(1) Every employer of an establishment engaging ten or more workers, on closing its business permanently shall communicate the same to the Facilitator in Form 'J'.

(2) Every employer of an establishment engaging less than ten workers on closing of its business permanently shall communicate the same to the Facilitator, in Form 'K'.

12. Power of Government for regulating opening and closing timings of establishments

The Government may, in the public interest, on its own and, if necessary, after obtaining the views of the concerned Municipal Commissioner in Corporation area or District Collector in other areas and the concerned Police Commissioner or Superintendent of Police, as the case may be, may fix or change the opening or closing timings of any or all classes of establishments in any area or premises.

13. Conditions for employment of women in general as well as in night shifts

(1) The following are the conditions for employment of women workers in general in any establishment irrespective of the number of woman workers employed therein, namely:

(i) The employer shall take all the measures and safeguards to prevent or deter the commission of the Acts of sexual harassment at place of work by strictly implementing and enforcing all the provisions of the Sexual Harassment of Women at Work Place (Prevention, Prohibition and Redressal) Act, 2013 (14 of 2013).

(ii) In case of a sexual harassment at the instance of a third party, either by an act or commission, the employer shall take all necessary and reasonable steps to assist the affected women workers in terms of support and preventive action.

(iii) Provide proper lighting and illumination inside the establishment and also surroundings of the establishment and to all places where the women worker may move out of necessity in the course of such shift.

(iv) Every employer shall maintain a complaint box. Every employer shall also display the phone numbers of local police station, control room and women help line number prominently in the establishment.

(v) A sufficient number of woman security guard shall be engaged in establishment employing not less than ten women workers. The Police verification of such women security guard shall be mandatory.

(vi) Separate urinals and latrines shall be maintained for women workers with safety locking facility only from inside.

(2) The following additional conditions shall be complied for employment of women workers in night shifts, namely:

(i) Woman workers shall be allowed to work during 9.30 p.m. and 7.00 a.m. in any establishment only after obtaining her consent in Form 'L'.

(ii) The number of women workers employed in the night shift shall not be less than three at any point of time.

(iii) To provide safe and secure separate transportation facility for all the women workers working in the night shift from the place of workplace to the doorstep of their residence and vice-versa. The employer shall have all the details of the drivers, guards and all such workers engaged by themselves or through any agency or contractor. Police verification of all such workers engaged for safe and secure transportation of women workers shall be mandatory.

(iv) In addition to the holidays as mentioned in section 18 of the Act, every women worker who works in night shift as per her shift schedule, shall be eligible for one additional paid holiday for every two months in a year.

(v) There shall be not less than twelve consecutive hours of rest or gap between the last shift and night shift whenever a women worker is changed from day shift to night shift and also from night shift to day shift.

(vi) No women worker shall be allowed to work in night shift during the period of twenty-four weeks before and after her child birth, of which at least twelve weeks shall be before the expected child birth, and for further such period, if any, as specified in the medical certificate stating that it is necessary for the health of the women worker or her child:

Provided that, the said period may be relaxed at the request of women worker on the basis of medical certificate from a qualified medical practitioner stating that neither her health nor that of her child will be endangered.

(vii) Every employer shall annually submit an undertaking to the Facilitator that he shall provide all the facilities as mentioned in this rule and shall take due care and diligence regarding the safety, dignity and honour of women worker in general and particularly of those in night shift.

14. Notice of hours of work, rest interval, weekly holiday

Every employer shall display a notice on his website and at a conspicuous place of the premises of the establishment on a notice board showing the hours of work, rest-interval, weekly holiday in Form 'M'.

15. Prohibition of overlapping of shifts

Work shall not be carried out in any establishment by means of a system of shift so arranged that more than one relay of workers is engaged in work of the same kind at the same time.

16. Notice of shift schedule, weekly holiday of workers engaged in shift

(1) In case of establishment operating in shift, the employer shall display well in advance a shift schedule, alongwith weekly holiday showing the names and designation of all persons working in that shift, so that each worker is aware of his weekly holiday and the shift in which he has to work. Such notice shall be in Form 'N' and shall be kept in every establishment and made available for inspection to the Facilitator on demand. The notice shall be displayed on the website and at a conspicuous place of the premises of the establishment on the notice board. A copy of the same shall be send to the Facilitator electronically or otherwise.

(2) There shall be not less than twelve consecutive hours of rest or gap between the last shift and night shift whenever a worker is changed from day shift to night shift and also from night shift to day shift.

17. Part-time employment

(1) It shall be lawful for the employer to engage part-time worker provided that, he shall not be allowed to work more than five hours in a day.

(2) No part time worker shall be allowed to work overtime under any circumstances.

(3) Wages payable to a part time worker shall be computed by dividing the per day rate of Minimum Wages applicable to that schedule employment by eight (hours) with fifteen per cent. rise in it or by divided the prevailing rate of per day wages fixed for permanent workers doing similar nature of work in that establishment by eight (hours) with fifteen per cent. rise in it, whichever is higher.

18. Other particulars on identity card

(1) Alongwith the particulars to be contained in the identity card of worker specified in section 17 of the Act, the identity card shall also contain an emergency contact number of worker.

(2) The employer may issue identity card in electronic form subject to the condition that a hard copy of the identity card shall be maintained and a copy of the same shall be produced as and when demanded by the Facilitator.

19. Leave Book

Every employer shall provide to each worker with a book called 'Leave Book' in Form 'O'. A copy of the same shall be retained by employer. All the entries of sanctioned earned leave as per section 18 shall be noted in the Leave Book. Any earned leave applied for and is refused shall also be noted in the Leave Book with initials of the employer or his representative in the respective column of Leave Book. If the Leave Book is lost by the worker, the employer or manager shall provide him the duplicate copy of the same. However, every employer shall be free to maintain Leave Book in such format as he deems fit providing therein all the particulars which would be inconsonance with Form 'O'.

20. Notice by employer or manager of accumulated leave

The employer or manager shall communicate in Form 'P' to the concerned worker, whose leave, which has been carried forward has reached the maximum limit allowed under sub-section (5) of section 18, as soon as possible in the first quarter of each calendar year. Such notice shall state that no further leave can be carried forward.

21. Health, Safety and Welfare Committee

(1) Every establishment wherein one hundred or more workers are ordinarily employed, there shall be constituted a Health, Safety and Welfare Committee, consisting of equal number of employer and worker's representatives.

(2) The representative of the employer and workers on the Health, Safety and Welfare Committee shall include,

(i) Senior official who by his position in the organisation can contribute effectively to the function of the said Committee and he shall be the Chairman.

(ii) Representatives of Head of all the Departments or In-charge of Sections of the establishment, e.g. sales, purchase, material, personnel, marketing, finance etc., if any.

(iii) Maximum ten workers representative nominated by the workers of the establishment as members of the said Committee. The said Committee shall have sufficient number of representatives of women worker, wherever women workers are employed.

(3) The duties, functions and responsibilities of the said Committee are as follows:

(i) To survey the premises and to examine whether there is any accident prone spots in the premises or defects or hazardous object or hazards in the premises.

(ii) To follow and pursue to get such spots, defects, objects or hazards rectified.

(iii) To conduct health care or wellness camps once in a year in the organisation or establishment.

(iv) To create awareness about any contagious disease or epidemics or any natural calamities or any calamities due to accident, fire, etc.

(v) To conduct recreation, cultural, sports activities annually.

(vi) To conduct social and educational awareness programmes like Swaccha Bharat Abhiyan, Tree Plantation, Family Welfare, Beti Bachao-Beti Padhao, etc.

(vii) It shall be the duty and responsibility of the said Committee to organize above event with due care and diligence.

22. Cleanliness, lighting and ventilation

Premises of every establishment shall be kept clean and free from infection. It should have proper ventilation and lighting. No rubbish, filth or debris shall be allowed to accumulate or to remain on any premises or in an establishment or in the surroundings of such

establishment in such position that effluvia therefrom can arise within the area of the establishment or its surroundings.

23. Precautions against fire

(1) Every employer shall take all the measures to protect the premises and the workers therein from the danger of fire. He shall adopt and implement all such measures as suggested, recommended or directed by the Fire Officer, Department of the Local Authority or Fire Brigade of that local area or any such authority. It shall be his duty to follow the norms and guidelines for protection against fire as per the provisions of any law for the time being in force or any direction or instruction issued by any Local Authority or any such authority wherein the establishment is situated. The employer shall produce, whenever demanded by the Facilitator, a copy of the order or instruction or guidelines, etc. issued by the Fire Officer of Local Authority or any such authority.

(2) Every employer shall also adopt and implement all the safety measures mentioned, suggested and recommended in the Fire and Safety Policy as declared by the Government, from time to time.

24. First-aid appliances

Every employer shall maintain such duly equipped first aid box in each establishment with the following first-aid appliances and medicine, namely:

(i) small, medium and large sterilized dressing in required numbers;

(ii) large size sterilized burn dressing in required numbers;

(iii) packets of sterilized cotton-wool in required numbers;

(iv) pair of dressing scissors;

(v) bottle containing solution of iodine or mercury-chrome;

(vi) bottle containing solution of savolatine having the dose and mode of administration indicated on the label;

(vii) bottle containing potassium permanganate crystals;

(viii) any antidote for burns;

(ix) sufficient numbers of sanitary napkins for women worker, wherever applicable.

25. Latrines and urinals

Every employer either individually or group of employers shall provide and maintain a common, neat and clean urinal and latrines facility with supply of antibacterial liquid soap for men and women worker separately in such sufficient numbers. It shall be well ventilated with exhaust fan and lighted and safe for use of women worker in particular. It should have a proper provision of water supply and flushing of waste.

26. Maintenance of registers and records

(1) The employer shall maintain a Muster-Roll cum Wages Register in Form ‘Q’:

Provided that, where any employer or manager maintains a Muster Roll-cum-Wages Register under sub-rule (1) of rule 27 of the Maharashtra Minimum Wages Rules, 1963 framed under the Minimum Wages Act, 1948 (XI of 1948), it shall not be necessary for him to maintain Muster Roll-cum-Wages Register as per the provisions of this sub rule (1).

(2) Every entry in the register or records requires to be maintained under these rules shall be authenticated digitally or manually by the employer or the manager or any person so authorised by him. The entries relating to overtime shall be made immediately after completion of such overtime work. In case both the employer and the manager are absent on any day, the entries shall be authenticated by such person as may be authorised in writing by the employer.

(3) Every register, record and notice required to be maintained, exhibited or given under these rules shall be either in Marathi or in English language.

(4) Every employer or manager shall preserve the inspection records of the Facilitator for a period of three years and shall produce the same whenever demanded by the Facilitator.

(5) Where an office, store-room, godown, warehouse, or work place used in connection with the trade and business of an establishment is situated at the premises other than the premises of such establishment, all such registers, records and muster-rolls required to be maintained under the Act and these rules may be separately so maintained in respect of such office, store-room, godown, warehouse or work place, etc.

27. Annual Return

Every employer shall online upload the Annual Return in Form 'R' on the website within two months for the year ending on 31st December. A print copy of the same may be furnished as and when demanded by the Facilitator.

28. Supervision of State Government over Local Authority

(1) If the Local Authority to whom the duty of enforcing the provisions of the Act is delegated under section 27 of the Act makes default in the performance of any duty imposed by or under the Act, the State Government may, appoint appropriate person to perform it and may direct that the expenses of the person so appointed to perform the duty, shall be paid forthwith by the Local Authority.

(2) The Chief Facilitator shall review the performance of such Local Authority periodically.

(3) Every such Local Authority shall submit a report to the Chief Facilitator in such form as instructed by him.

29. Qualification of Facilitator

A person shall hold at least a degree of any recognised University or an equivalent qualification, for being qualified to be appointed as a Facilitator.

30. Duties and powers of Facilitator

(1) The Facilitator shall make such examination as may appear to him to be necessary for the purpose of satisfying himself that the provisions of the Act and rules made thereunder and any orders issued by the Government or the Local Authority under the Act and rules made thereunder are duly observed.

(2) He shall maintain a monthly diary as per the instructions of the Chief Facilitator and submit it to such officer as directed by the Chief Facilitator as per office order.

(3) It shall be his duty to serve all the notices and orders as per the Act to the concerned persons issued by the Compounding Officer.

(4) It shall be his duty to carry out inspection as per the online randomisation inspection system or any other system for the time being in force in the office of the Chief Facilitator.

(5) It shall be the duty of each Facilitator to maintain court cases register independently and the register of cases referred to the Compounding Authority as per the instruction of the Chief Facilitator.

(6) It shall be the duty of the Facilitator to advise the employer so as to comply with the irregularities pointed out by him in his inspection memo. It shall also be his duty to guide the workers in an establishment about their rights under the Act and the remedies available to them.

(7) It shall be his duty to confirm that the defaulting employer has paid the fees as per the direction of the Compounding Officer and shall verify whether the amount is deposited in the local area treasury office.

31. Application for Compounding of Offence

(1) Every application for compounding of an offence shall be in Form 'S'.

(2) The Compounding Officer shall maintain a proper Rojnama of all the cases heard by him.

(3) The Compounding Officer notified under section 33 (1) of the Act, shall hold sittings in each district or in such a place in the local area regularly as per the work load or the matter referred to it.

32. Procedure for Compounding of Offence

(1) The Compounding Officer on receipt of an application shall examine all the documents, the nature of breaches of the Act and rules made thereunder and shall pass a detailed order within working seven days from receipt of application. The Compounding Officer while determining the amount of compounding fees shall have regard to the seriousness of breaches, nature of an offence and evidence on record. The Compounding Officer shall on receipt of the compounding fees make the order for deposit of compounding fees and after deposit of such amount, the offence shall be compounded and the Compounding Officer shall make necessary entries in a register kept for that purpose.

(2) An order passed by the Compounding Officer shall be forwarded to the concerned local Facilitator for serving the same to the defaulting employer within seven working days.

(3) The maximum fees for compounding of offence may be imposed by the Compounding Officer shall not be less than fifty per cent. of the maximum fine specified for such offence under the Act.

(4) In calculating the period for filling of prosecution under section 32, the time period taken for compounding of offence shall be excluded.

33. Intimation of persons discharging managerial function

Every employer registered under section 6, shall inform to the Facilitator in Form 'T' the names and designation and brief nature of duties of such persons who are discharging managerial function. The information in Form "T" shall be submitted annually and whenever there is any change, during the year.

34. Intimation of persons doing confidential work

Every employer shall inform in Form 'U' the names of such persons who are occupying position of confidential character in an establishment. However, the number of such persons shall not be more than one per cent. of the total strength of workers of the establishment subject to a maximum of fifty persons. The information in Form "U" shall be submitted annually and whenever there is any change, during the year.

35. Name Board to be in Marathi

The Name Board of every establishment shall be in Marathi language in Devnagari Script and shall essentially be written in the beginning:

Provided that, the employer may also have the Name Board in any other language and script in addition to Marathi in Devnagari Script.

Provided further that, the font size of Name Board in Marathi shall not be less than that of the Name Board in any other language:

Provided also that, no establishment where liquor is served or sold shall have a Name Board in the name of legends or fort.

36. Cancellation of registration certificate

Where the Facilitator proposes to take action under section 8 of the Act for cancellation of registration he shall,

(i) by a notice require the employer to submit his say as to why the registration shall not be cancelled;

(ii) if, within ten days from the date of the receipt of the notice, the employer fails to submit his say alongwith relevant documents, the Facilitator may cancel the registration. If within the period of ten days, the employer submits his say alongwith all relevant documents the Facilitator may, after considering the say and the documents either withdraw the notice or cancel the registration as he may deem fit.